

1 _____ BILL NO. _____

2 INTRODUCED BY _____

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4 A BILL FOR AN ACT ENTITLED: "AN ACT DIRECTING AN AMENDMENT TO ARM 37.95.610 TO REVISE
5 THE OUTDOOR SPACE REQUIREMENTS FOR DAY-CARE CENTERS."

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7 WHEREAS, the availability of child care in Montana is not sufficient to meet the current demand; and

8 WHEREAS, child-care centers near and in urban centers of employment ease the logistical burden for
9 working families; and

10 WHEREAS, parents are best suited to decide the ideal child-care conditions and location for their
11 children; and

12 WHEREAS, the current language of ARM 37.95.610 unreasonably limits the day-care options for
13 parents who work or reside in urban centers.

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15 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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17 NEW SECTION. **Section 1.** The Department of Public Health and Human Services shall amend ARM
18 37.95.610 to read:

19 "37.95.610 DAY CARE CENTERS, SPACE

20 (1) A day care center must have sufficient indoor and outdoor space for the number and ages of
21 children in care.

22 (2) Calculation of the required minimum 35 square feet of space per child must exclude food
23 preparation areas of the kitchen, bathrooms, toilets, offices, staff rooms, corridors, hallways, closets, lockers,
24 laundry areas, furnace rooms, cabinets, shelving, and other storage spaces.

25 (3) In facilities licensed after June 2, 2006, this requirement shall be deemed to have been
26 satisfied if each designated area for children's activities contains a minimum of 35 square feet of usable floor
27 space per child that will be in the room at any one time, as calculated in (2).

28 (4) When play and sleep areas for children are in the same room, a minimum of 35 square feet of

1 usable space per child shall be provided except for:

2 (a) periods when children are using their rest equipment; or

3 (b) when large group activities, such as educational assemblies, occur.

4 (5) During sleep periods, the area must be sufficient to provide spacing between the children using
5 sleep equipment.

6 (6) The equipment and furniture arrangement must permit unobstructed floor area sufficient to
7 allow vigorous play appropriate for each group of children in care, as well as arrangements of any sleeping
8 equipment used which permit easy access to every child and unobstructed exits.

9 (7) Outdoor play areas at the facility must be surrounded by a fence that is at least four feet high
10 and in good repair without any holes or spaces greater than four inches in diameter. Outdoor areas must be
11 designed so that all parts are always visible to allow for direct supervision by child care staff.

12 (8) The center may obtain an exception from the department from the requirements of this rule for
13 the following reasons:

14 (a) limited outdoor space is offset by a greater amount of indoor space, ~~such as a gym~~, permitting
15 an equivalent activity program, regardless of whether the indoor space is a single open area or multiple
16 separated areas;

17 (b) limited indoor space is offset by sheltered outdoor space where climate permits reliance on
18 outdoor space for activities normally conducted indoors; ~~or~~

19 (c) limited outdoor or unfenced space is offset by the availability or use of an adjacent school
20 playground, nearby parks, or other safe outdoor play area; or

21 (d) limited outdoor space is offset by the ability of the center to achieve the same objectives of the
22 outdoor space requirement in (1) with space or resources reasonably within the control of the center, including
23 space or resources that are not a single open area, and:

24 (i) the center is within the external boundaries of a city or municipality with a population greater
25 than 15,000 people;

26 (ii) the center is in a business district, defined as the territory contiguous to and including a
27 highway when within any 600 feet along a highway there are buildings in use for business or industrial
28 purposes, including but not limited to hotels, banks, office buildings, railroad stations, and public buildings that

- 1 occupy at least 300 feet of frontage on one side or 300 feet collectively on both sides of the highway; or
2 (iii) the center is in a commercial zone, as defined by the legislative body that holds zoning
3 authority under Title 76, chapter 2, part 3, MCA, in the city or town where the center is located."

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